IP INFORMATION DOCUMENT

LEXTRIA RESEARCH

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IP INFORMATION DOCUMENT - PATENT

LEXTRIA RESEARCH

STEPS FOLLOWED BY LEXTRIA RESEARCH TO DRAFT AND FILE AN APPLICATION

STEP 1	STEP 2	STEP 3	STEP 4	STEP 5	STEP 6
Filling Invention Disclosure (IDF) Form by the inventor	Call to discuss the invention with Team Lextria to decide filing of PS or CS	Drafting of the invention by Team Lextria	Confirmation of the draft and confirmation of the inventor details by the Inventors	Filing of the Application and Communication of Application Number with Ack and Form 1 for Signature	Providing Signed Form 1 within 3 months and providing evidence within 12 months in case of PS

PS - Provisional Specification
CS - Complete Specification

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TESTS FOR SELECTING A PATENT APPLICATION

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1

Whether the idea has been tested for feasibility ?

- No, need some time for R&D
  - File provisional and get 12 months time
- Yes, have clarity over the product that goes into market
  - File complete specification

2

Complete specification already filed

- Observed just an improvement
  - File patent of addition
- Observed significant change
  - Convert into provisional application and later follow-up with a complete specification
- Observed a different point of novelty
  - File divisional application

3

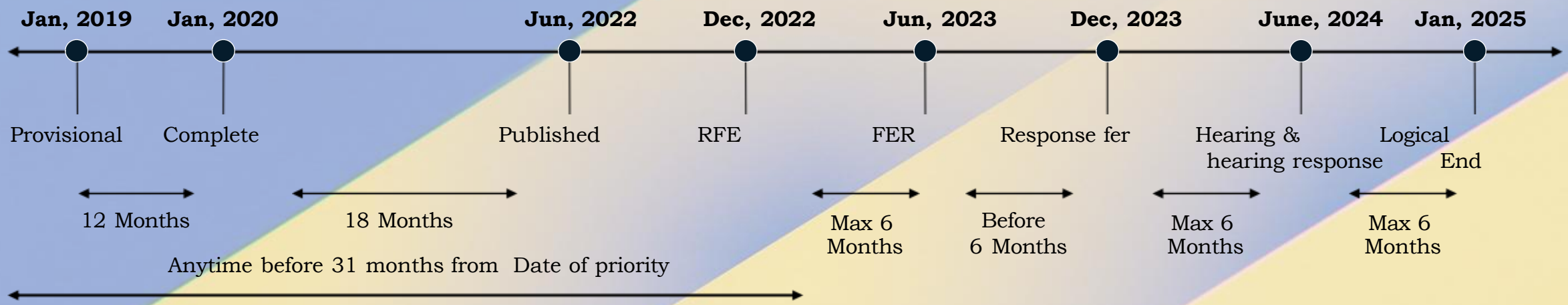
Product is not finalised but multiple inventive steps are observed

- File provisional specification to secure priority to each of such steps
- Follow-up with a complete specification before 12 months from data of filing first provisional specification

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PATENT CYCLE - EXEMPLARY SCENARIO:

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Note:

1. Date of priority is date of filing provisional application. In case complete specification is directly filed, date of priority is date of filing of the complete specification.
2. RFE: Request For Examination has to be paid before 31 months from date of priority.
3. FER: First Examination Report shall be issued anytime before 6 months if REF is already filed.
4. Early publication request gets the application published as soon as possible.
5. Expedited examination is available only for Start-ups, SMEs, female applicants, Govt depts. and those who made India as search authority in foreign filings. In case of Expedited Examination, it takes about half the time as normal proceedings.
6. Logical End may include Grant/Refusal. In case of refusal, filing review petition.
7. RFE, Early publication, Expedited examination have stipulated govt. fees as discussed in the Schedule of Fees

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SOME Keywords

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APPLICANT	INVENTOR
Applicant may be a Legal person or a natural person	Inventor should always be a natural person
PROVISIONAL SPECIFICATION	**COMPLETE SPECIFICATION**
Provisional specification is filed with limited information to secure the concept and priority date before any possible public disclosure	Complete specification is filed with best possible information and evidence of validation to secure grant
First Examination Report (FER)	**HEARING**
It is a first communication from patent office, and includes certain objections observed by the patent office and to be complied with in 6 months in writing	It is an opportunity to defend the application via placing oral arguments, and it shall be the final stage

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SOME FAQs

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Sl. No	QN	ANS
1	What would happen if complete specification is not filed after provisional specification?	The Application would be abandoned; the priority would be lost. However, it shall not affect novelty so it can be refiled.
2	Can time to file complete specification be extended ?	Yes, it can be extended up to 6 months with fees and with loss of priority.
3	How much time it might take for the patent to be published and granted ?	It takes about 18 months for the patent to be published in case of early publication with fees, it might take about 1 month until then the Application is confidential. It might take about 12 to 30 months for the patent to be granted.
4	Is it compulsory for a prototype to be made ?	As per patent act, it's important to provide best method of working and evidence of working. It may or may not be prototype. However, in case if it is asked by patent office it may be a necessity.

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Quotation for Patent Filing

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Sl. No	Service	Item	Official Fees	Service Fees	Total Fees
1	Patentability Search	Non-Paid Databases	0	No fee	No fee
2	Application for patent	With Provisional Specification	INR 1600	INR 12000	INR 13600
		Complete Specification within 12 months	INR 0	INR 12500	INR12500
		OR			
		Direct Complete Specification filing	INR 1600	INR 24500	INR 26100
3	Publication & examination	Request for early publication and Request for expedited examination - Form 9 and Form 18A	INR 10,500	INR 2,500	INR 13,000
		OR			
		Request for early publication and Request for examination - Form 9 and Form 18	INR 6,500	INR 2,500	INR 9,000
4	Reply to examination	Reply to First Examination Report	0	INR 20,000	INR 20,000
5	Hearing	Hearing and Representation Before the Controller	0	INR 8,000	INR 8,000
6	Written Submission	Communicating final written Submission	0	INR 20,000	INR 20,000

Government fees for large entities shall differ from those indicated above. Miscellaneous compliance forms shall attract the applicable Government fee plus a professional fee of ₹4,000/- per form. Payments are structured on a stage-wise basis; no payment shall be due for any stage deemed inapplicable. Stamp duty, courier, and other charges shall be communicated separately. All fees are exclusive of GST.

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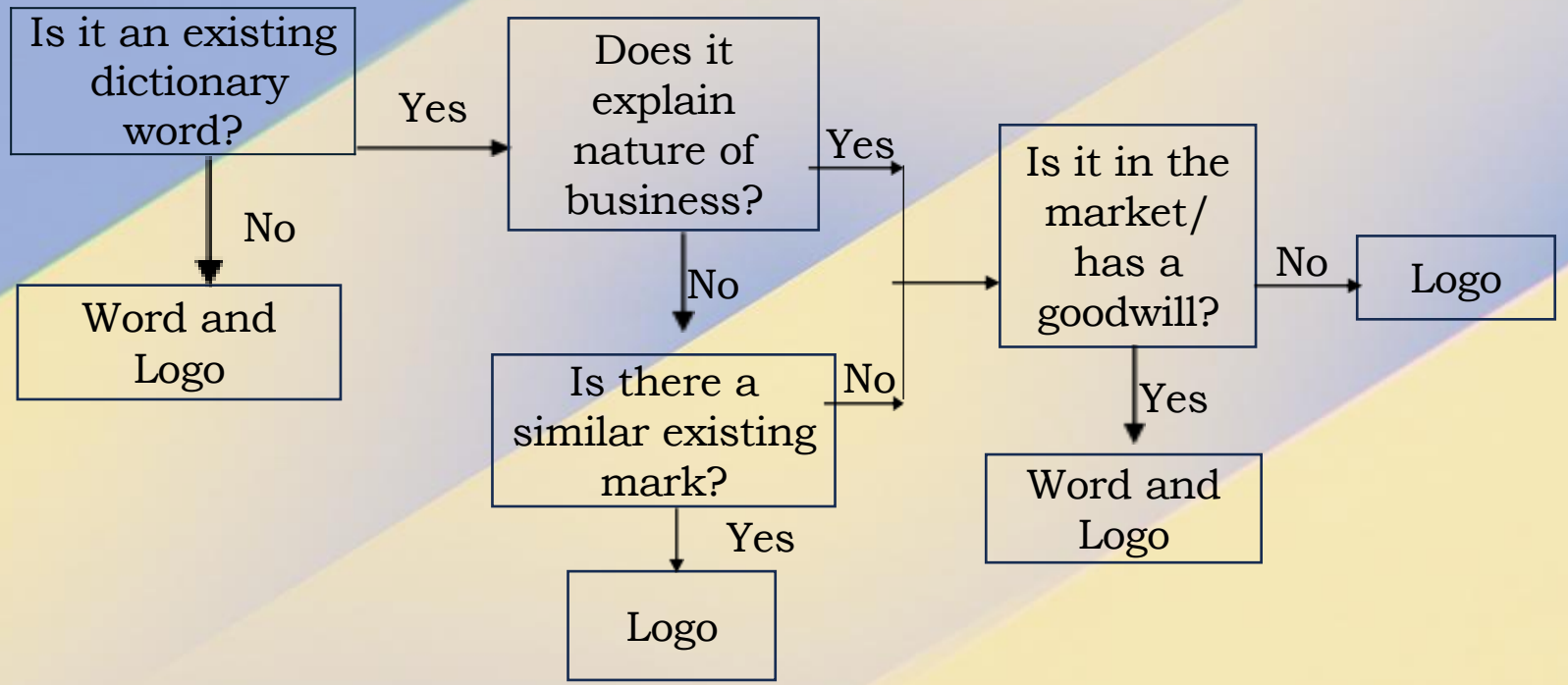
STEPS FOLLOWED BY LEXTRIA RESEARCH TO FILE A TRADEMARK APPLICATION

STEP 1	STEP 2	STEP 3	STEP 4	STEP 5	STEP 6
Receiving the checklist from the team Lextria Research	Executing a Trademark Search and providing a Report (if needed) by the team Lextria Research.	Complying with the checklist and providing evidence of use of the mark if any by the Applicant	Executing the shared Power of Attorney and affidavit (if any) by the Applicant	Filing the mark by team Lextria and sharing the acknowledgement	The mark is subjected for examination and team Lextria Research shall keep the Applicant posted.

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CHECKLIST AND TESTS FOR SELECTING A TRADEMARK

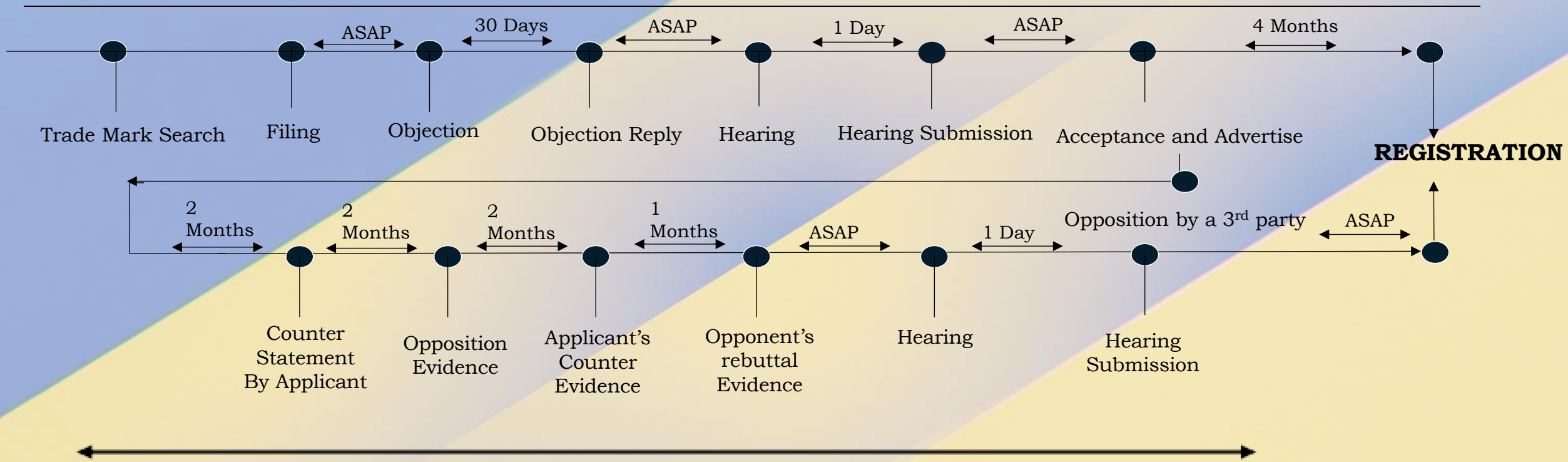
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TRADEMARK CYCLE - EXEMPLARY SCENARIO:

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1. In case of requirement of expedited examination, relevant fee shall be paid to speed up the process
2. 3rd party opposition can be filed by anyone
3. Trademark search includes search on the Trademark portal provided by the IPOTM

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SOME Keywords

WORD MARK	DEVICE MARK
Word mark gives protection to arrangement of letters	Device mark or logo mark gives protection to the graphical representation of the mark.
Objection	**Opposition**
Objection is by the TM registry and the Applicant has to file a response within 1 month	Opposition is by the 3rd party; the Applicant has to follow the process or the Applicant based on recommendation can file opposition to similar advertised marks

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FAQs

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Question	Answer
Does every case have objection ?	Need not be, it may or may not come.
How much time it might take to issue a hearing ?	Timeline is not defined; the Applicant may expedite.
Which mark gets granted easily ?	It depends on the similar marks, in practice usually device marks are granted faster.
How to protect packaging ?	Trade dress registration is done to protect packaging

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Quotation for Trademark Filing

Sl. No		Particulars (For Startup/MSME entities)	Prof Fees (₹)	Govt. Fee (₹)	Total (₹)
1.		Trademark Search accompanied by a Search report. (Oral opinion provided at no additional charge.)	10,000	-	**10,000/-**
2.	2a.	Filing of Trademark Application	10,000	4,500	**14,500/-**
		OR			
	2b.	Filing of Trademark via affidavit (Claiming prior usage of Trademark)	15,000	4,500	**19,500/-**
3.		Preparation and submission of a written response to the First Examination Report (FER) issued by the Trademark Office, along with requisite statutory forms.	8,000	-	**8,000/-**
4.		Representation before the Trademark Office in response to queries raised during a scheduled hearing.	10,000	-	**10,000/-**
		Preparation and filing of written submissions, along with requisite statutory forms.	12,000	-	**12,000/-**

Government fees for large entities shall differ from those indicated above. Miscellaneous compliance forms shall attract the applicable Government fee plus a professional fee of ₹4,000/- per form. Payments are structured on a stage-wise basis; no payment shall be due for any stage deemed inapplicable. Stamp duty, courier, and other charges shall be communicated separately. All fees are exclusive of GST.

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STEPS FOLLOWED BY LEXTRIA RESEARCH TO FILE A COPYRIGHT APPLICATION

STEP 1

Receiving the checklist from the team Lextria Research

STEP 2

Submitting the required documents as per the checklist by the applicant

STEP 3

Lextria Research Team reviews the submitted documents and reaches back for any incompliance

STEP 4

Executing the shared Power of Attorney by the Applicant

STEP 5

Lextria Research team files the copyright application and shares the diary number with the applicant

STEP 6

The application is subjected for examination and team Lextria Research shall keep the Applicant posted..

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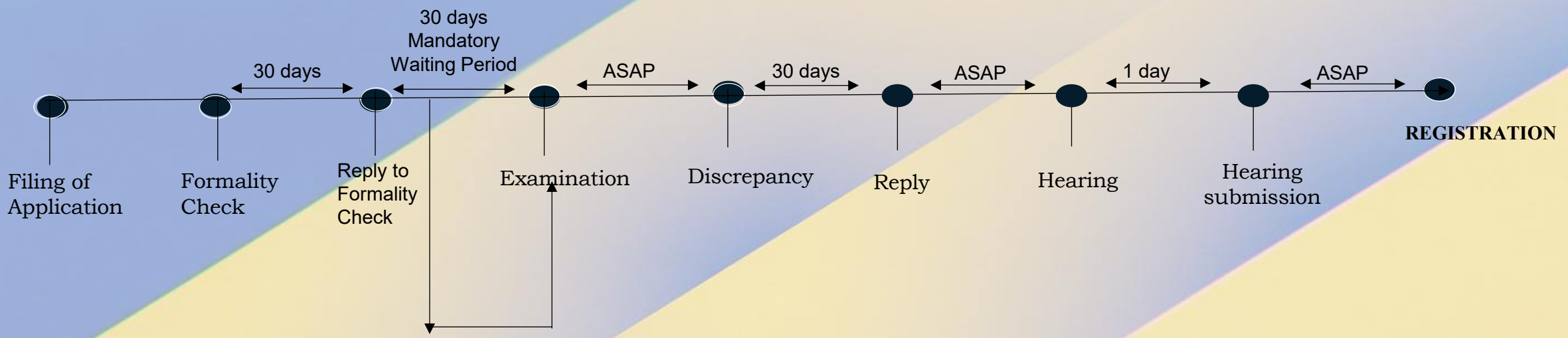
CHECKLIST AND TESTS FOR SELECTING A COPYRIGHT

SL NO.	CATEGORY	TYPE OF WORK
1	**Literary works**	Books, novels, stories, articles, and lectures
2	**Musical works**	Songs, choruses, and compositions
3	**Dramatic works**	Plays, operas, musicals, screenplays, TV scripts, and dance choreography
4	**Artistic works**	Paintings, photographs, cartoons, drawings, and sculptures
5	**Cinematographic works**	Movies, video films, and film strips
6	**Sound recordings**	Recordings of sounds, songs, and audiobooks
7	**Architectural works**	Designs for buildings
8	**Software**	Computer programs and video games

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COPYRIGHT CYCLE - EXEMPLARY SCENARIO:

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Note: On an average it takes about 3-6 months for an application to reach the logical end

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SOME Keywords

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APPLICANT	Author
Applicant may be a Legal person or a natural person, usually owner of the work	Author should always be a natural person, who has created the work
PUBLISHER	**DIARY NUMBER**
Person who take the work to the masses and makes it public	A reference number given by the Copyright Office
DISCREPANCY	**HEARING**
It is a first communication from patent office, and includes certain objections observed by the patent office and to be complied with in 6 months in writing	It is an opportunity to defend the application via placing oral arguments, and it shall be the final stage

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Quotation

Sl. No	Particulars (For Startup/MSME entities)	Prof Fees (₹)	Govt. Fee (₹)	Total (₹)
1.	Filling of Copyright Application	12,000	**500**	**12,500/-**
2.	Preparation and submission of a written response to the First Examination Report (FER) issued by the Copyright Office, along with requisite statutory forms.	6,000	-	**6,000/-**
3.	Representation before the Copyright Office in response to queries raised during a scheduled hearing.	8,000	-	**8,000/-**
	Preparation and filing of written submissions, along with requisite statutory forms.	10,000	-	**10,000/-**

Government fees for large entities and/or for the type of application, shall differ from those indicated above. Miscellaneous compliance forms shall attract the applicable Government fee plus a professional fee of ₹4,000/- per form. Payments are structured on a stage-wise basis; no payment shall be due for any stage deemed inapplicable. Stamp duty, courier, and other charges shall be communicated separately. All fees are exclusive of GST.

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